

26STCV09615 26STCV09615

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-09-14

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C730%2C09%2F14%2F2026

Source SHA-256: 5ca787090ca7a1ef8d0e8905281a42066e52e27d2c32e4ec875da467943c8423

Case Number: 26STCV09615 Hearing Date: September 14, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

OKWII

AGBO,

Plaintiff,

vs.

CHAD

BIGGINS, ESQ., et al.,

Defendants.

Case No.:

26STCV09615

Hearing

Date:

September 14, 2026

ORDER

DEEMING DEFENDANTS' DEMURRER MOOT

I. BACKGROUND

Plaintiff Okwii Agbo

("Agbo"), while represented by Defendants Chad Biggins ("Biggins") and Bigging Law, Inc. ("BL"), was unsuccessfully sued by a non-party and awarded \$18,000.00 in costs and fees. Defendants placed a lien on non-party's home to obtain the award, but allegedly never informed Agbo or distributed the amount to Agbo. Agbo sued Defendants for six causes of action, including breach of fiduciary duty.

On June 18, 2026, Defendants filed the instant amended demurrer.

On July 23, 2026, Agbo filed a proposed amended complaint.

II. LEGAL STANDARD

Code

of Civil Procedure section 430.10[1]

states: "The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds: (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading; (b) The person who filed the pleading does not have the legal capacity to sue; (c) There is another action pending between the same parties on the same cause of action; (d) There is a defect or misjoinder of parties; (e) The pleading does not state facts sufficient to constitute a cause of action; (f) The pleading is uncertain. As used in this subdivision, uncertain includes ambiguous and unintelligible; and (g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct."

As

a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) "A demurrer

tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where

a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment.

(Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.)

However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Pursuant

to section 472, a party may amend its pleading once without leave of court. If the amendment is filed after a demurrer or motion to strike is filed, it must be filed and served no later than the date for filing an opposition to the demurrer or motion to strike. (Ibid.)

III. DISCUSSION

Pursuant to section 472, a party may amend its pleading once, without leave of court, following the filing of a demurrer or motion to strike, so long as it is filed and served by the date for filing an opposition to those pleadings. The date for filing an opposition to demurrer is nine court days prior to the hearing on the pleadings. (§ 1005, subd. (b).)

Agbo’s initial complaint

was filed on March 25, 2026. On May 28, 2026, and June 12, 2026, Defendants filed special motions to strike (or “anti-SLAPP motion”). Both motions were heard and denied on July 15, 2026.

Defendants also filed a

demurrer on June 11, 2026, amending the demurrer on June 18, 2026. Upon filing of a demurrer, Agbo was entitled

to file one amended complaint pursuant to the timeline outlined in section 472, so long as an anti-SLAPP motion was not pending. As this demurrer was always set to be heard on September 14, 2026, the amended complaint needed to be filed by August 31, 2026, to be deemed operative without leave of court. Agbo filed the FAC on July 23, 2026, far before the deadline, and after the anti-SLAPP motions were resolved.

As Agbo's FAC was filed and served prior to the opposition due date, it is the new operative complaint. Defendants' demurrer to the original complaint is MOOT.

IV. CONCLUSION

Defendants' demurrer to the initial complaint is MOOT.

Agbo is to give notice.

DATED:

September 14, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at SMCDEPT730@lacourt.org with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or

in person for oral argument. You should assume that others may appear at the hearing to argue.

- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.